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California could become first state to ban foods with ingredients linked to ADHD and cancer in schools

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Cheetos, Sunchips and some raisins could soon become things of the past in California's public schools.

State lawmakers have passed a first-in-the-nation bill that would ban schools from serving foods containing six artificial ingredients that have been linked to low IQ, behavioral problems and cancer.

The bill has now been sent to Governor Gavin Newsom's desk which, if he signs it, would go into effect in December 2027.

Supporters herald the legislation as an important step forward in protecting the health of California's children.

It outlaws foods containing the additives Red Dye No. 40, Yellow Dye No. 5, Yellow Dye No. 6, Blue Dye No. 1, Blue Dye No. 6 and Green Dye No. 3.

The ingredients that could be banned are prevalent in ultra-processed foods (UPFs) and have been associated with a host of medical issues.

Red 40, as well as Yellow 5, and Yellow 6 contain benzidene, a human and animal carcinogen permitted in low, thought-to-be safe, levels in dyes and can be found in products including Sour Patch Kids and Lucky Charms.

According to the FDA, ingestion of free benzidine raises the cancer risk to just under the ‘concern’ threshold, or one cancer case per 1million people.

Consumers can find Red 40 in cake icings, while those who love baked treats like Twinkies will take in a dose of Yellow 5.

Yellow 6, meanwhile, can be found in sugary breakfast cereals, including Cap’N Crunch.

Red 40 and Yellow 5 have also both been linked to hyperactivity in children, raising concerns they may affect learning and cognitive function and, in turn, IQ.

Blue Dye 1 and 6 have both been linked to hyperactivity in children, as well as allergic reactions.

Some studies also suggest Blue Dye 1 may cause cancer or damage to organs at high doses.

House Democrat Jesse Gabriel, who led California's first-in-nation ban on other food additives earlier this year, said: 'California has a responsibility to protect our students from chemicals that harm children and that can interfere with their ability to learn.

'As a lawmaker, a parent and someone who struggled with ADHD, I find it unacceptable that we allow schools to serve foods with additives that are linked to neurobehavioral harms.

'This bill will empower schools to better protect the health and well-being of our kids and encourage manufacturers to stop using these harmful additives.'

The bill has received bipartisan support, being voted through the Senate on Wednesday with 34 votes in favor and four abstentions.

And Thursday, it was voted through the state House, with 70 votes in favor and nine abstentions.

The bill — AB2316 — has also been co-sponsored by watchdogs Environmental Working Group (EWG) and Consumer Reports.

Brian Ronholm, director of food policy at Consumer Reports, said: 'Dangerous dyes that put kids at higher risk for hyperactivity and other neurobehavioral issues that get in the way of learning should not be allowed in food sold in schools.

'Banning these harmful dyes from school foods will protect the health and well-being of kids in California.'

He added: 'Consumer Reports applauds Assemblymember Gabriel for introducing this critical food safety legislation and urges Governor Newsom to sign this bipartisan bill into law.'

The new law would permit public elementary schools in California to serve only fruit, vegetables, dairy, protein or whole grain-rich foods to students.

It would screen out foods containing the additives, as well as those where more than 35 percent of their total weight comes from sugars.

The ingredients targeted in California's bill are more strictly regulated in the EU, with several banned in some countries.

Across the EU, officials require products containing Red 40 to carry a warning label stating: 'May have an adverse effect on activity and attention in children'.

California is leading the nation in its bans on additives in foods, after passing a ban on four cancer-causing food additives in October last year.

This will outlaw products from being sold in the state that contain brominanted vegetable oil, potassium bromate, propylparaben and Red Dye 3.

It affects about 12,000 products and is expected to come into force in January 2027, with companies facing fines of up to $10,000 if they are found to be manufacturing, distributing or selling the products with those ingredients in the state.

Experts say the ban has the potential to change recipes in products nationwide because of the size of the California market, at 40million people — or 10 percent of the US population.

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